

Manoj Singh v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 30 March 2016 · Writ-C No. 11201 of 2016 · **Provisional assessment notice quashed; fresh notice directed.**

HEADNOTE

A Division Bench quashed Purvanchal Vidyut Vitran Nigam's 2 February 2016 provisional assessment notice demanding Rs.3,73,970/- because it neither specified a hearing date as required by Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 nor disclosed the basis of the assessment. Fresh provisional assessment was directed, with final assessment only after considering objections with reasons, following Ashok Kumar.

FACTUAL SUMMARY

Manoj Singh challenged a Purvanchal Vidyut Vitran Nigam Ltd. provisional assessment notice dated 2 February 2016 demanding Rs.3,73,970/-. At first listing he said no assessment order had been served; the Court directed the licensee to produce it. On 30 March 2016 he argued that Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 required the notice itself to fix a hearing date, and that the notice also omitted the basis of the demand. The matter was treated as a theft-of-electricity assessment.

REUSABLE CONSTRUCTIONS

1. A Clause 6.8(b) provisional assessment notice must itself specify a date for hearing so that the consumer can appear; a notice that omits that date is not in accordance with the Supply Code. ¶ 2
2. The same notice must disclose the basis of the assessed amount; silence on both the hearing date and the basis of demand means the consumer was not afforded the opportunity Clause 6.8(b) requires. ¶ 2
3. A defective 6.8(b) notice is to be quashed and a fresh provisional assessment issued; the final order must consider the consumer's objections and give reasons, in the light of Ashok Kumar. ¶ 2

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment notice — hearing date and basis of demand

HOLDING

Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 requires the provisional assessment notice itself to specify a date for hearing and to disclose the basis of the assessed amount. The 2 February 2016 notice demanding Rs.3,73,970/- did neither, so the consumer was not afforded the opportunity the clause requires. The notice is quashed; the licensee must issue a fresh provisional assessment and make the final order only after considering objections with reasons, following Ashok Kumar. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ASSESSMENT AND QUANTUM OF RS.3,73,970/-

Notice quashed for want of a hearing date and assessment basis; fresh provisional assessment directed. ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ 660			2	Referred

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.